3. If he/she is unfit to continue in office by reason of infirmity of mind or body; or

4. If he/she is of unsound mind and stands so declared by a competent court; or

5. If he/she is convicted and sentenced to imprisonment for an offence.

In addition to these, the President can also remove the chairperson or a member on the ground of proved misbehaviour or incapacity. However, in these cases, the President has to refer the matter to the Supreme Court for an inquiry. If the Supreme Court, after the inquiry, upholds the cause of removal and advises so, then the President can remove the chairperson or a member.

The salaries, allowances and other conditions of service of the chairperson or a member are determined by the state government. But, they cannot be varied to his/her disadvantage after his/her appointment.

All the above provisions are aimed at securing autonomy, independence and impartiality in the functioning of the Commission.

**Functions**

The functions of the Commission are:

1. To inquire into any violation of human rights or negligence in the prevention of such violation by a public servant, either suo motu or on a petition presented to it or on an order of a court.

2. To intervene in any proceeding involving allegation of violation of human rights pending before a court.

3. To visit jails and detention places to study the living conditions of inmates and make recommendation thereon.

4. To review the constitutional and other legal safeguards for the protection of human rights and recommend measures for their effective implementation.

5. To review the factors including acts of terrorism that inhibit the enjoyment of human rights and recommend remedial measures.

6. To undertake and promote research in the field of human rights.

7. To spread human rights literacy among the people and promote awareness of the safeguards available for the protection of these rights.

8. To encourage the efforts of non-governmental organizations (NGOs) working in the field of human rights.

9. To undertake such other functions as it may consider necessary for the promotion of human rights.

**Working**

The Commission is vested with the power to regulate its own procedure. It has all the powers of a civil court and its proceedings have a judicial character. It may call for information or report from the state government or any other authority subordinate thereto.